

Tauqeerul Islam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 September 2011 · WRIT - C No. 48673 of 2011 · **Writ disposed; consumer relegated to clause 6.5; reconnection to be considered after the required deposit.**

HEADNOTE

On a challenge to an Executive Engineer's letter requiring deposit of a revised MRI-based electricity bill, the Allahabad High Court disposed of the writ, holding that the consumer's remedy lay under clause 6.5 of the U.P. Electricity Supply Code, 2005, and that after the required deposit under that clause the licensee shall consider reconnection.

FACTUAL SUMMARY

Tauqeerul Islam petitioned the Allahabad High Court to quash a letter dated 30 July 2011 of the Executive Engineer requiring him to deposit a revised electricity bill as per MRI. After two short adjournments, the writ was heard. Counsel for the respondents submitted that the petitioner's remedy was to invoke clause 6.5 of the U.P. Electricity Supply Code, 2005 for revision of the bill. Petitioner's counsel stated that if the amount under clause 6.5 were deposited, the grievance would be considered and bill details given.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-revision-and-reconnection-after-6.5-deposit

HOLDING

A consumer challenging an Executive Engineer's demand to deposit a revised MRI-based bill is to seek revision under clause 6.5 of the U.P. Electricity Supply Code, 2005; after deposit of the amount required under that clause, the licensee shall consider reconnection. The writ is disposed without deciding the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 30.7.2011 MRI REVISED BILL

The letter was neither quashed nor examined on merits; the consumer was relegated to clause 6.5. ¶ 1